



CITY OF PHILADELPHIA
DEPARTMENT OF PUBLIC HEALTH

BOARD OF HEALTH: 5/20/2026
LAW DEPARTMENT: 5/26/2026
RECORDS DEPARTMENT:

**AMENDMENT TO THE REGULATIONS GOVERNING THE IMMUNIZATION AND
TREATMENT OF NEWBORNS, CHILDREN, AND ADOLESCENTS**

WHEREAS, the Board of Health recognizes and reaffirms the need to protect children and adolescents from preventable diseases; and

WHEREAS, childhood and adolescent immunizations are an effective method of reducing morbidity and mortality caused by vaccine-preventable diseases; and

WHEREAS, pursuant to 28 Pa. Code § 27.60, the Department of Public Health (“Department”) has the authority to direct the isolation of a person with a communicable disease or infection and to direct the surveillance, segregation, quarantine or modified quarantine or contacts of a person with a communicable disease or infection, or any other disease control measure the Department considers to be appropriate for the surveillance of disease, when the disease control measure is necessary to protect the public from the spread of infectious agents; and

WHEREAS, Title 6 of The Philadelphia Code, entitled “Health Code,” authorizes the Board to require the immunization of any person against any communicable disease for which immunization is effective;

NOW, THEREFORE, the Board of Health hereby amends the Board’s *Regulations Governing The Immunization and Treatment of Newborns, Children and Adolescents* to read as follows (additions in **Bold** and deletions in ~~Strikethrough~~):

1. DEFINITIONS

In these Regulations, the following definitions apply:

- (a) ~~Advisory Committee on Immunization Practices (ACIP). The Committee appointed by the Centers for Disease Control and Prevention (CDC) to develop written recommendations for the routine administration of vaccines to the pediatric and adult populations, along with schedules regarding the appropriate periodicity, dosage, and contraindications applicable to the vaccines.~~
- (a)(b) *Authorized user.* Any person or entity authorized to provide or receive information from an immunization registry, which may include health care providers, parents and guardians, schools and childcare facilities,

managed care organizations, and local government health departments and their agents.

- (b)(e) *Board*. The Board of Health of the City of Philadelphia.
- (c)(d) *Coverage rate*. The percent of a given population immune to a specific communicable disease, or combination of diseases, as a result of vaccination or disease history.
- (d)(e) *Child care group setting*. A home or facility in which four or more children who are not related to the operator receive child care.
- (e)(f) *Department*. The Department of Public Health of the City of Philadelphia, the Commissioner of the said Department, or any designated representative thereof.
- (f)(g) *Health care facility*. A facility providing health services, including, but not limited to, a general, chronic disease, or other type of hospital; a private medical practice; a home health care agency; a hospice; a long-term care nursing facility, a cancer treatment center; an ambulatory surgical facility; a birth center; and an inpatient drug and alcohol treatment facility, regardless of whether such health care facility is operated for profit, nonprofit or by an agency of the government.
- (g)(h) *Health care provider*. An individual who is authorized to practice some component of the healing arts by a license, permit, certificate or registration issued by a state licensing agency or board.
- (h)(i) *Immunization status*. The number of dosages of specific vaccine antigens and their respective dates of administration, which are used to determine adequacy of immunization.
- (i)(j) *Medical record*. An account compiled by physicians and other health professionals including a patient's medical history; present illness; findings on physical examination; details of treatment; reports of diagnostic tests; findings and conclusions from special examinations; findings and diagnoses of consultants; diagnoses of the responsible physician; notes on treatment, including medications, surgical operation, radiation, and physical therapy; and progress notes by physicians, nurses, and other health professionals.
- (j) ***Outbreak*. An unusual increase in the number of cases of a disease, infection or condition, whether reportable or not as a single case, above the number of cases expected in a particular population.**

- (k) *Record of immunization.* A written document, such as a physician record or other document of similar reliability, reflecting the date and type of immunization.
- (l) *School.* Public, private and parochial schools in Philadelphia, including special education, special classes, vocational programs, intermediate units and home education programs.

2. IMMUNIZATION REQUIREMENTS FOR ATTENDING SCHOOLS

- (a) *Required for School Entry and Attendance at Any Grade Level (Kindergarten through Twelfth Grade)*~~*Into Kindergarten or First Grade and for Attendance at Any Grade Level.*~~ The following immunizations, whether administered as single vaccines or as components of US Food and Drug Administration approved combination vaccines, given in compliance with the minimum intervals and schedules required for each component vaccine, are required for entry into school and attendance at the kindergarten or first grade level and for attendance at all grade levels:
 - (1) *Hepatitis B.* Three properly-spaced doses of hepatitis B vaccine or a history of hepatitis B immunity proved by laboratory testing.
 - (2) *Diphtheria.* Four or more properly spaced doses of diphtheria toxoid, which may be administered as a single antigen vaccine, in combination with tetanus toxoid or in combination with tetanus toxoid and pertussis vaccine. One dose must have been administered on or after the 4th birthday.
 - (3) *Tetanus.* Four or more properly spaced doses of tetanus toxoid, which may be administered as a single antigen vaccine, in combination with diphtheria toxoid or in combination with diphtheria toxoid and pertussis vaccine. One dose must have been administered on or after the 4th birthday.
 - (4) *Pertussis.* Four properly spaced doses of pertussis vaccine in combination with diphtheria and tetanus toxoids, or a physician's documentation of a medical contraindication to pertussis vaccine. One dose shall be administered on or after the 4th birthday.
 - (5) *Poliomyelitis.* Three or more properly spaced doses of any combination of oral polio vaccine or enhanced inactivated polio vaccine.
 - (6) *Measles (rubeola), Mumps, Rubella (German measles).* Two properly spaced doses of live attenuated vaccine, as the combination vaccine Measles, Mumps, Rubella (MMR) or as

Measles, Mumps, Rubella, Varicella (MMRV), ~~according to the routine recommended schedule,~~ or a history of measles, mumps, and rubella immunity proved by serological evidence. The first dose of vaccine must have been given no sooner than 12 months of age, and the second dose at 4-6 years of age, with a minimum interval of 28 days between doses. Immunization with single antigen vaccines for measles, mumps, and rubella is also acceptable, provided two doses of each were administered at appropriate intervals.

(7) *Varicella (chickenpox).* One of the following:

- (i) Two doses of varicella vaccine, administered as the single antigen Varicella (V) or as the combination vaccine Measles, Mumps, Rubella, Varicella (MMRV). The first dose of vaccine must have been given no sooner than 12 months of age, and the second dose at 4-6 years of age, with a minimum interval of 3 months between doses.
- (ii) A history of chickenpox immunity proved by laboratory testing or a written statement of history of chickenpox disease from a healthcare provider.

(b) *Required for School Entry into Seventh Grade.* In addition to the requirements listed as a condition of attending school **at Any Grade Level (Kindergarten through Twelfth Grade)** ~~at grade levels Kindergarten through 12,~~ the following immunizations, whether administered as single vaccines or as components of U.S. Food and Drug Administration-approved combination vaccines, given in compliance with the minimum intervals and schedules required, are required at the seventh grade level:

- (1) *Meningococcal.* One dose of meningococcal conjugate vaccine quadrivalent (MCV4).
- (2) *Pertussis, tetanus, diphtheria.* One dose of pertussis vaccine administered in combination with tetanus and diphtheria toxoids (Tdap). This dose must have been administered on or after the 10th birthday.

(c) *Required for Entry into Twelfth Grade.* In addition to the requirements listed as a condition of attending school **at Any Grade Level (Kindergarten through Twelfth Grade)** ~~at grade levels Kindergarten through 12,~~ the following immunizations, whether administered as single vaccines or as components of U.S. Food and Drug Administration-

approved combination vaccines, given in compliance with the minimum intervals and schedules, are required for entry at the twelfth grade level:

(1) *Meningococcal*. Two doses of meningococcal conjugate vaccine quadrivalent (MCV4). If the first dose of MCV4 was given at 16 years of age or older, the second dose is not required for entry ~~onto~~ **into** 12th grade.

(2) *Pertussis, tetanus, diphtheria*. One dose of pertussis vaccine administered in combination with tetanus and diphtheria toxoids (Tdap). This dose must have been administered on or after the 10th birthday.

(d) ***Required for Students Who Have Skipped One or More Grades.*** Where a student has skipped one or more grades and, with respect to any of the immunizations otherwise required pursuant to Section 2(b) or 2(c), such student is below the age for which immunization is recommended by the American Academy of Pediatrics' (AAP) Recommended Child and Adolescent Immunization Schedule, as updated February 5, 2026, the student shall:

(1) Complete the immunizations required by Section 2(b) by age 12; and

(2) Complete the immunizations required by Section 2(c) by age 17.

~~(d)~~(e) *Exemption from Immunization Requirement for School Entry or Attendance.*

(1) *Medical exemption.* Children need not be immunized if a physician or the physician's designee provides a written statement that **the specific** immunization may be detrimental to the health of the child. ~~Such a statement must comply with the list of valid vaccine contraindications as established by the Advisory Committee for Immunization Practices (ACIP).~~ When the physician determines that immunization is no longer detrimental to the health of the child, the child shall be immunized according to this regulation.

(2) *Religious exemption.* Children need not be immunized if the parent, guardian or emancipated child objects in writing to the immunization on the grounds of prohibition based on religious belief or on the basis of a strong moral or ethical conviction similar to a religious belief.

(3) *Exclusion of exempt students in situations of disease ~~epidemic~~ outbreak.* In the event the Department declares that there is an ~~epidemic~~ **outbreak** of a vaccine preventable disease, any child who is enrolled in a public, private, or parochial school and who has been exempt **from**

immunization for the disease that is the source of the outbreak ~~from one or more immunization requirement for any of the causes authorized herein~~ shall be temporarily excluded from **in-person** attendance at the school. An enrollee so temporarily excluded shall be authorized to return to **in-person attendance** at school upon the lifting of the **outbreak** ~~epidemic~~ declaration by the Department.

- (a) **The Department may also determine that any child enrolled in a public, private or parochial school who has been exempt from immunization for a vaccine preventable disease shall be excluded in situations where there is an imminent threat of an outbreak, taking into account several factors, including, but not limited to:**

- (1) Infectious agent type;**
- (2) Size and type of population exposed;**
- (3) Exposure pathway;**
- (4) Risk of severe illness and/or death;**
- (5) Time and place of disease occurrence.**

~~(e)~~(f) *Timing of Required Vaccine Doses.* For students entering Kindergarten through 12th grade, at least one dose of all required vaccines must be received by the first day of school. If a child does not have all required doses of a vaccine, **the child she/he** must, within the first 5 days of school:

- (1) Receive the next dose of a required vaccine if medically appropriate; or
- (2) Have a parent / guardian provide a medical plan, if the next dose is not the final dose of the series; or
- (3) Have a parent / guardian provide a medical plan, if the next dose is not medically appropriate.

3. IMMUNIZATION REQUIREMENTS FOR CHILDCARE SETTINGS

- (a) *Vaccination requirements.* Each child enrolled in a child care group setting shall be immunized in accordance with ~~most current standards established by the Advisory Committee on Immunization Practices (ACIP)~~ **American Academy of Pediatrics' (AAP) Recommended Child and Adolescent Immunization Schedule, as updated February 5, 2026,** ~~as presented in their Recommended Childhood and Adolescent Immunization Schedule.~~

- (b) Annual influenza immunization given in compliance with the requisite dose and schedule of any US Food and Drug Administration approved influenza vaccine is required for childcare attendance of all **children between the ages of 6—59 6 and 59 month months old children** at any public or private childcare group setting in the City of Philadelphia.
- (1) One dose of a licensed influenza vaccine must be received between August 1st – December 31st of each calendar year while attending a childcare group setting.
- (2) A second influenza vaccine dose within four weeks of the first dose may be recommended for some children. Receipt of the second dose is not required for childcare attendance.
- (c) *Caregiver responsibilities.* ~~For each child enrolled in a childcare group setting, the~~ **The** person in charge of the group setting shall ensure that a record of immunization is provided for each child enrolled in the childcare group setting by a healthcare provider, or designee, setting forth the vaccines the child has received and their dates of administration (month, day and year). The person in charge of the group setting shall ensure that the records are updated on a regular basis. The immunization status of each enrolled child shall be available for review by the Department, upon request.
- (1) The caregiver at a child care group setting may not accept or ~~retain~~ **allow** a child 2 months of age or older **to remain** at the setting, for more than 60 days, without verification of satisfaction of a child's age-appropriate immunization requirements, or the caregiver has received written documentation of satisfaction of one of the exemptions set forth in section 3(d).
- (2) Verifications of immunization status shall also specify any vaccination not given due to medical condition of the child and shall state whether the condition is temporary or permanent.
- (3) If the caregiver receives a written verification explaining that timely vaccination did not occur due to a temporary medical condition, the caregiver shall exclude the child from the child care group setting after an additional 30 days unless the caregiver receives, within that 30-day period, written verification from a healthcare provider that the child was vaccinated or that the temporary medical condition still exists. If the caregiver receives a written verification that vaccination has not occurred because the temporary condition persists, the caregiver shall require the presentation of a new verification at 30-day intervals. If a verification is not received as required, the caregiver shall exclude the child from the child care group setting and not readmit the child until the caregiver receives a verification that meets the requirements of this section.

(4) The caregiver shall retain the written verification or objection referenced in paragraph (b) for 60 days following the termination of the child's attendance.

(d) *Exemptions.* Immunization requirements for childcare settings do not apply with respect to:

(1) Children who are known by the caregiver to attend a kindergarten, elementary school or high school in Philadelphia.

(2) A caregiver who does not serve as a caregiver for at least 40 hours during any one month period.

[...]

5. RESPONSIBILITY AND AUTHORITY FOR REPORTING IMMUNIZATION INFORMATION ON NEWBORNS, CHILDREN, AND ADOLESCENTS

(a) *Responsibility for Reporting Immunization Information.* Any health care provider who treats or examines a newborn, child, or other person below the age of 19, and any head, superintendent or other person in charge of a health care facility that treats such persons, who has knowledge of administration of any immunizations ~~included in the current Advisory Council on Immunization Practices/American Academy of Pediatrics (ACIP/AAP) Recommended Childhood and Adolescent Immunization Schedule that are routinely administered~~ to persons less than 19 years of age shall make a report of the immunization to the Department. The report shall be submitted in a ~~content~~ **form** and manner as specified below and in accordance with additional parameters as may be established by the Department.

(b) *Timing and Method of Reporting.* Reports of immunizations shall be made within 30 days of vaccine administration to the Department's Division of Disease Control, **via secure fax to 215-238-6944 or by mail to: PhilaVax, 1101 Market Street, 12th floor, Philadelphia PA, 19107**~~Immunization Program, Division of Disease Control, Department of Public Health, 500 S. Broad Street, Philadelphia, PA 19146;~~ or through secure transfer of electronic data in a manner as established by the department.

(c) *Content of Reports.* All reports shall include the following information:

(1) Child's name (first, middle and last);

(2) Child's date of birth;

(3) Child's sex;

(4) Name of the child's legal guardian;

(5) Address of the child's legal guardian;

- (6) Type of immunization;
- (7) Date of vaccine administration (month, day, year);
- (8) Name of the immunization provider;
- (9) Any additional information as the Department may require in connection with a particular type of immunization or case.